

August 21, 2026
Dept. 9
Civil Tentative Rulings

1.	22CV1082	MOHAMMED NAJAFPIR VS. VISIONARY REALTY GROUP INC ET AL
MOTION TO LIFT STAY OF PROCEEDINGS		

ON THE COURT'S OWN MOTION DUE TO LACK OF JUDICIAL COVERAGE, THE COURT WILL HEAR THIS MATTER ON SEPTEMBER 18, 2026, AT 8:30 A.M. IN DEPARTMENT NINE. THERE WILL BE NO HEARING ON AUGUST 21, 2026. SHOULD A PARTY WISH TO REQUEST ORAL ARGUMENT, THE BELOW PROCEDURES REMAIN IN EFFECT.

The Notice does not comply with Local Rules 7.10.05. Repeated violations will be grounds for sanctions pursuant to Local Rule 7.12.13.

Plaintiff, Mohammad Najafpir ("Plaintiff"), filed a Motion to Lift Stay of Proceedings on Juen 25, 2026. Defendants, Visionary Realty Group Inc. and Michelle Harris (collectively "Defendants"), filed an Opposition on August 7, 2026.

On January 2, 2024, the Court granted Cross-Defendants/Cross-Complainants', Larry Charles Siri and Wendy Ann Siri ("Cross-Defendants"), Motion to Compel Arbitration and stayed the civil proceedings pending the outcome of the arbitration. Plaintiff contends that arbitration has concluded, a Final Arbitration Award has been issued, and Plaintiff's Petition to Vacate Arbitration Award has been denied by this Court (filed under case no. 26CV0983). Accordingly, the remaining claims against Defendants have not been adjudicated and remain pending.

Defendants assert that Plaintiff filed another litigation against Cross-Defendants in case number 26CV0983, in which they are unaware of how it relates to the current action or arbitration, and on that basis alone, they will not stipulate to lift the stay.

California Code of Civil Procedure § 1281.4 provides that when a court has ordered arbitration of a controversy that is an issue involved in a pending action, the court shall stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.

As the Final Arbitration Award has been issued, the Court grant's Plaintiff's request to lift stay of proceedings.

TENTATIVE RULING #1:

PLAINTIFF'S MOTION TO LIFT STAY OF PROCEEDINGS IS GRANTED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.

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RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.